

JUDGMENT SHEET
IN THE LAHORE HIGH COURT, LAHORE
JUDICIAL DEPARTMENT

Writ Petition No.70103 of 2021

*Jamshed Iqbal Cheema V/S The Election Appellate
Tribunal and others*

J U D G M E N T

Date of hearing	16.11.2021
Appellant(s) by	M/s Mubeen Uddin Qazi, ASC along with Rana Abdul Shakoor, Ch. Tahir Mahmood, Rana Mushtaq Ahmad Toor, Muhammad Azam Chaudhry and Ahmad Sardar Khan, Advocates.
Respondent(s) by	Mr. Mohammad Ahmad Qayyum, ASC along with Shumail Arif, Advocate for the Respondent No.3. Barrister Ahmad Pervaiz, Advocate for the Respondent No.13. M/s Imran Arif Ranjha, Legal Advisor, Ch. Umer Hayat, Director Legal, Hafiz Adeel Ashraf, Hafiz Muhammad Bilal Azhar, Legal Assistants, Election Commission of Pakistan. Mr. Ashtar Ausaf, Advocate. Barrister Zargham Lukhesar and Mr. Waqar Saeed Khan, Assistant Advocates General.

JAWAD HASSAN, J. This judgment will examine the relevant provisions of the Election Act, 2017 (the “*Act*”) and the Election Rules, 2017 (the “*Rules*”) in the light of Part-VIII, Chapter 2 of the Constitution of Islamic Republic of Pakistan, 1973 (the “*Constitution*”) dealing with the electoral laws and conduct of elections. As the preamble of the Constitution specifically states that (i) principles of **democracy** shall be fully observed, (ii) dedicated to the preservation of **democracy** achieved by the

unremitting struggle of the people against oppression and tyranny (iii) the State shall exercise its powers and authority through the **chosen** representatives of the people. While examining the relevant provisions of Section 60 and 62 of the Act, principles enunciated by the Hon'ble Supreme Court of Pakistan has been followed which are binding on this Court under Article 189 of the Constitution. The preamble of the Election Act, 2017 read with Election Rules, 2017, clearly state that an Act to amend, consolidate and unify laws relating to the conduct of elections.

2. As all necessary parties are represented and have addressed full-fledged arguments, therefore, through this single judgment, this Writ Petition as well as Writ Petition No.70394 of 2021 treating the same as ***pacca*** cases are being decided collectively as question of law and facts are common in both these petitions.

3. Through these petitions, filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (the "***Constitution***"), the Petitioners seek to set aside the judgment dated 05.11.2021 (the "***Impugned Judgment***") passed by the Election Appellate Tribunal/Respondent No.1 (the "***Tribunal***") as well as order dated 30.10.2021 (the "***Impugned Order***") passed by the Returning Officer/Respondent No.2, respectively whereby objection petition filed by the Respondents No.3 to 5 against Petitioners' nomination papers for contesting bye-election for NA-133 was allowed and nomination papers were rejected.

A. BRIEF FACTS

4. The Election Commission of Pakistan (the "***ECP***"), in order to elect representative as a member to fill National Assembly Seat which became vacant due to death of Muhammad Pervaiz Malik, elected MNA, called upon the electors of Constituency of National Assembly No.133 Lahore ("***NA-133***") and in this respect, an election schedule dated 18.10.2021 for holding of bye-elections in Constituency of NA-133 on 05.12.2021 was

issued. The Petitioners submitted their nomination papers on 25.10.2021 under Section 60 of the Act read with Rule 51 of the Elections Rules, 2017 (the “**Rules**”) while Form-31 was issued by the Returning Officer on 26.10.2021. On the day of scrutiny, objection in terms of Section 62(9)(b) of the Elections Act 2017 (the “**Act**”) against nomination papers submitted by the Petitioners was raised by the Respondents namely Naseer Ahmad Bhutta, Muhammad Hafeez and Mirza Faisal Hussain being voters of the constituency of NA-133 through three separate objection petitions that the proposers namely Bilal Hussain S/o Manzoor proposer of Petitioner in this petition and Ghulam Murtaza S/o Nazir Ahmad, proposer of the petitioner in connected petition, were not qualified to subscribe nomination papers of the Petitioners. The Returning Officer vide order dated 30.10.2021 rejected the nomination papers of the Petitioners. Feeling aggrieved, the Petitioners filed Election Appeals before the *Tribunal* under Section 63 of the Act read with Rule 54 of the Rules which were dismissed vide the *Impugned Judgment* dated 05.11.2021. Hence this petition.

B. PETITIONERS SUBMISSIONS

5. Mr. Mubeen Uddin Qazi, ASC, *inter alia* contended that the impugned judgment and the impugned order are illegal and unconstitutional; that the proposers were fully qualified to subscribe the nomination papers of the Petitioners as they were not only the residents of Street No.3, Siddique Mohallah, Liaquat Abad, Kot Lakhpat, Lahore which exclusively falls within the electoral area of NA-133 but also their family members were the residents of same address which is also mentioned in electricity bills, domicile certificates and CNIC but these facts have totally been ignored by the Tribunal and the Returning Officer; that though the proposers’ names were reflected in the electoral rolls of NA-130 instead NA-133 due to erroneous and misplaced entry of their Census Circle number yet the addresses of their residence

situated in electoral area of NA-133 are mentioned in electoral roll of NA-130; that the Petitioners have been non-suited to contest the election merely on the ground that their proposers names were not reflecting in the electoral rolls of NA-133; that the Tribunal has failed to appreciate that the Petitioners' case is not a case of defect in the nomination papers but a case of defect in the record of the ECP due to misplaced Census Circle for which the Petitioners filed application to ECP for rectification of error in ECP's record but that application was also rejected vide order dated 02.11.2021; that the learned Tribunal has also failed to properly distinguish and appreciate the legal position that Section 2(xli) read with Section 60(1) of the Act conveys a different meaning than the provisions of Section 2(xii) read with Section 12(1) of the Representation of the People Act, 1976 according to which proposers and seconders are not required to be registered voters from the same constituency where the elections are being held rather their representation is based on resident of the constituency and not the presence in electoral roll as voter; that the Tribunal has wrongly interpreted the provisions of Section 62(9)(b)(i) of the Act because the proposers obtained Voter Certificates from the District Election Commissioner, Lahore for the purpose of subscribing the nomination papers of the Petitioners; that the Petitioners have been disenfranchised illegally and have been deprived of their fundamental rights as such the Impugned Judgment and Impugned Order are liable to be set aside. The counsel for the Petitioners has relied on "Nadeem Shafi Versus Tariq Shuja Butt and others" (PLD 2016 SC 944) and "Rana Muhammad Tajammal Hussain Versus Rana Shaukat Mahmood" (PLD 2007 SC 277).

C. RESPONDENTS SUBMISSIONS

6. On the contrary, Barrister Ahmad Qayyum, ASC appeared and while referring to Section 2(xli) of the Act stated that voter is a person who is enrolled as a voter on the electoral roll of the

constituency and in the case in hand the Petitioners' proposers and seconders are on the electoral roll of NA-130 and as per law settled by the Courts, a proposer or seconder must be registered voter of the constituency from where the nomination papers are filed. He also referred to Section 62 of the Act and stated that Returning Officer has to scrutinize nomination papers on the basis of existing electoral roll and is restrained from inquiring into the correctness or validity of any entry in the electoral roll. Barrister Ahmad Qayyum, ASC relied on paragraph No.9 and 10 of the case law cited in "Rana Muhammad Tajammal Hussain Versus Rana Shaukat Mahmood" (PLD 2007 SC 277). He referred to paragraph Nos.2, 6 and 9 of the judgment of Full Bench of this Court bearing W.P.No.221907 of 2018 titled "Rao Muhammad Sarwar Versus Returning Officer, PP-77, Sargodha & another"

D. GIST OF THE ISSUES

7. In the case in hand, the learned counsel for the Petitioners is of the view that representation of proposer and seconder is based on the resident of the constituency while the learned counsel for the Respondents are of the view that a proposer or seconder must be registered voter of the constituency on existing electoral roll from where the nomination papers are filed which is NA-133 and not NA-130.

E. NUB OF THE MATTER

8. The nub of the matter in this case is that who is qualified proposer and seconder to nominate a candidate for the member of that constituency because the proposer or seconder has to be a voter of a constituency and the word 'voter' has been defined in the Act which includes a person who is enrolled as person on electoral roll of any electoral area in a constituency.

9. We have heard the arguments and perused the record.

F. DETERMINATION BY THE COURT

10. The anchor point involved in this case is to ascertain whether the eligibility and qualification of a voter who is proposing and seconding a candidate to contest election as a member of National Assembly is to be examined on the basis of his residence in the particular area where the elections are going to be held by the ECP or it is to be determined on the basis of his enrollment in the electoral roll of that particular area. In order to comprehend the position in true and correct perspective, it is pivotal to understand the relevant terms as defined under the Act. A candidate is defined in Section 2(vii) which means a person proposed and seconded as a candidate for, or seeking, election as a Member. This definition makes it ample clear that for a candidate to participate in an election as a Member of National Assembly he must be (i) proposed and (ii) seconded by a voter as evident from Section 60 of the Act wherein it has been categorically provided that any voter of a constituency may (i) propose or (ii) second the name of any qualified person to be a candidate for Member of that constituency whereas sub-section 4 of Section 60 has laid a condition that a person as a candidate may be nominated in the same constituency by not more than five nomination papers. Now it is necessary to elucidate the meaning and scope of the term “voter” because it is the most important and essential requirement which is to be fulfilled by a proposer and seconder in order to nominate any candidate to be a Member from a constituency. Section 2 (xli) defines “voter” in relation to an Assembly as a person who is enrolled as a voter on the electoral roll of any electoral area in a constituency. Electoral roll is defined as per Section 2(xx) as an electoral roll prepared, revised or corrected under this Act and includes the electoral rolls prepared under the Electoral Rolls Act, 1974 as already existed before

commencement of the present Act. On the other hand, “electoral area” is defined under Section 2 (xvi) and “constituency” is defined under Section 2 (xi) of the Act as a constituency delimited under the Act.

11. It is well founded that being a voter in any of electoral area of the constituency is mandatory requirement for a voter to propose and second the nomination of a candidate for becoming a Member of the National Assembly. Perusal of Section 2 (xli) of the Act evidently signifies that voter in relation to an Assembly is a person who is enrolled as a voter on the electoral roll of any electoral area in a constituency. This definition makes it abundantly clear that enrollment in the electoral roll is basic and fundamental requirement for a person to be a voter of a particular electoral area and mere residing in an area or having a temporary or permanent resident in any part of the electoral area of a constituency is not a determinative factor to term a person as voter within the meaning of the Act. Even though Section 27 of the Act postulates a criterion with respect to having place of residence in an electoral area as to be generally included within the electoral roll, however, the determinant factor is not being a resident of the constituency but being enrolled in the electoral roll of any of the electoral area which is part of the said constituency. The plain meaning and intent behind the scheme of things as discernable from bare reading of the Act and by applying general and literal rule of interpretation leads to the irresistible conclusion that residing within an electoral area forming part of a constituency may be one of the vital ground to be enrolled as a voter in the electoral roll of said constituency but it is not an alternative or equivalent to actually being in an electoral roll, which is indeed the sine qua non for becoming a voter within the spectrum of the Act to become a proposer and seconder of a nominee for contesting an election of the Assembly.

12. It is settled principle of law that when law requires an act to be done in a particular manner and after fulfillment of certain requirements then it must be done in the very manner and after fulfillment of the very conditions as imposed by the law. The Honorable Supreme Court in “MUHAMMAD HANIF ABBASI Versus IMRAN KHAN NIAZI and others” (PLD 2018 SC 189) laid down the principle as follows:

“It is settled law that where the law requires something to be done in a particular manner, it must be done in that manner. Another important canon of law is that what cannot be done directly cannot be done indirectly”.

Similar view was earlier expressed by the august Supreme Court in “THE COLLECTOR OF SALES TAX, GUJRANWALA Versus MESSRS SUPER ASIA MOHAMMAD DIN AND SONS” (2017 SCMR 1427), wherein it was observed that *“when a statute requires that a thing should be done in a particular manner or form, it has to be done in such manner”*. In “ZIA UR REHMAN Versus SYED AHMED HUSSAIN” (2014 SCMR 1015) the Honorable Supreme Court laid down the same principle by holding that *“If the law requires a particular thing to be done in a particular manner it has to be done accordingly, otherwise it would not be in-compliance with the legislative intent. Same view was expressed earlier by the Honorable Supreme Court in “HAKIM ALI Versus MUHAMMAD SALIM” (1992 SCMR 46) wherein it has held that “it is well settled that when the law gives direction to do a thing in a particular manner, it shall be done in that manner or not at all”*.

13. The combined result as emanating from the above discussion leads to a definite conclusion that a candidate in order to become a Member of the Assembly requires nomination from a (i) proposer and (ii) seconder who must be enrolled as a voter on the electoral roll of any electoral area in that constituency and

proving the factum of having a temporary or permanent residence in the area falling within the constituency is not an alternative to the mandatory requirement of having enrolled in the electoral roll of the Commission.

14. Even otherwise, Section 26 of the Act provides for preparation of preliminary electoral rolls on the superintendence, directions and control of the Election Commission and laid down requirements criterion for the same including the requirement with respect to place of residence as ordained in Section 27 of the Act which states a general rule that ordinarily a person shall be deemed to be resident in an electoral area if his temporary or permanent address in the CNIC lies in the said electoral area. Section 28 stipulates for preliminary publication of the electoral rolls and Section 30 provides a remedy to the person whose name is excluded or requires rectification to file application for inclusion of name or such other correction within the period of thirty days or within a time as determined by the Commission. However, Section 31 postulates mechanism for transfer of name from one electoral area to another and Section 34 provides for correction of electoral rolls by Registration Officer as per decision of the Revising Authority under Section 33 or for correction of other errors and thereafter final publication of electoral roll is made under Section 35, which is not to be revised, corrected or the names transferred after constituency is called upon to elect its representative as provided under Section 39. This holistic scheme under the Act and the Rules regarding preparing, rectifying and authenticating of electoral rolls leads to definite conclusion that if the name of a voter is missed out from being included in the electoral rolls, he has been given adequate remedial forum to set it right but if he failed to do so and his name is not in the electoral roll of a constituency when a schedule for election in the same is issued by

the Commission, then at this stage, the same cannot be rectified, altered or modified.

15. It is even otherwise beyond the competence of the Returning Officer to go into the question of correctness or validity of any entry in the electoral roll since it is defined function of the Registration Officer under the superintendence and command of the Election Commission through the procedure as discussed above. Section 62(6) has laid it down specifically that Returning Officer shall not enquire into the correctness and validity of the entry in electoral roll. Although under second proviso of Section 62(9) the Returning Officer is empowered to allow removal of any such defects in the nomination papers, which are not of substantial nature, yet the requirements that only a voter of a constituency is competent to propose and second a candidate to contest election for Assembly being the only criteria for a candidate to participate in the election for National Assembly speaks volume about the significance of the role of such a voter who proposes and seconds a candidate. It was therefore, quite logical that the proposer and the seconder must be a voter enrolled in the electoral roll of that very constituency, which is to be represented in the National Assembly by such a candidate so nominated. The statutory requirement imposed upon a candidate to be named by a proposer and seconder is definitive and substantial in nature, which cannot be remedied and rectified by the Returning Officer under second proviso of Section 62(9) of the Act.

16. The Honorable Supreme Court in “NADEEM SHAFI Versus TARIQ SHUJA BUTT and others” (PLD 2016 SC 944) elaborated the role of proposer and seconder while interpreting the same under Punjab Local Government (Conduct of Elections) Rules, 2013 which in essence laid down similar principles as provided under the Act observed as under:-

*“Proposer and/or seconder are not defined anywhere in the Act *ibid* or the 2013 Rules, therefore, it would appear that the only qualification of a proposer and/or seconder are that he/she be a voter of the constituency. As this is the sole qualification of a proposer and/or seconder a defect with respect to said qualification would go to the heart of the qualification of such proposer and/or seconder to subscribe to the nomination papers and the same would be liable for rejection under Rule 14(3)(b) of the 2013 Rules”.*

The Court further held:-

*“7. The nomination form II(b) for election to general seats of wards in Union Councils/ Municipal Committees requires a declaration by the proposer and the seconder to the effect that he is registered as a voter at serial # such and such of electoral roll for the electoral area of ward # such and such of the union council/municipal committee. The declaration with respect to the proposer and/or seconder being the essence of his qualification, therefore, if he is not such a voter of the relevant constituency he cannot act as proposer and/or seconder. The question of the object and purpose of nomination by a proposer and/or seconder have been dealt with by a judgment of this Court cited as *Federation of Pakistan v. Mian Muhammad Nawaz Sharif* (PLD 2009 SC 284) wherein at paragraphs 78 and 79 this Court held that the proposer and seconder are recommendees with respect to the candidate nominated for election. The ineluctable conclusion is that the proposer and the seconder must be voters of the same constituency, who put forward the name of a duly qualified candidate whom they considered suitable to represent the electorate. It is an endorsement of the nominated candidate by voter(s) of the same constituency. Therefore, should it be discovered that the proposer and/or seconder are not voters of the said constituency it would be tantamount to no nomination at all and thus a defect of a substantial nature”.*

(underlined for emphasis)

17. The Honorable Supreme Court in “RANA MUHAMMAD TAJAMMAL HUSSAIN Versus RANA SHAUKAT MAHMOOD” (PLD 2007 SC 277) further held that any defect in submitting nomination paper, duly proposed and seconded by a candidate, is of a substantial nature. The Court observed as follows:-

“9. It has been pointed out hereinabove that the object of section 12(1) of the Act, 1976 is that elector of the constituency may propose or second the name of any duly qualified person as a candidate for election as a member for that constituency, clearly spells out the intention of the legislature. Therefore, keeping in view that intention of the legislature the word 'may' used in section 12(1) has to be read as 'shall' and on having held that the word 'may' can be interchanged with the word 'shall' to enhance the intention of the legislature, the candidate is bound and under mandatory obligation to ensure filing of nomination papers from the constituency duly proposed and seconded by the electors therefrom. There is no cavil with the proposition that once it is found out that a provision of the law is mandatory by its implication, the same is bound to be strictly following as has been held in Dalchand v. Municipal Corporation Bhopal AIR 1983 SC 303.

10. Thus it is held that the plea of the learned counsel for appellant that permission be accorded to him to substitute the names of the proposer and seconder, at this stage, seems to be not acceptable. Therefore, opinion expressed in the case of Ishaq Dar v. Election Tribunal (KLR 1998 Civil Cases 374) is not approved for the reasons mentioned herein above because of the fact that this provision of law is mandatory in its nature and would have substantial effect on the election, for which schedule is to be announced and any nomination paper found invalid cannot be allowed to be validated afterwards, even in exercise of powers either by the Returning Officer or the Election Tribunal or for that matter High Court or this Court, in terms of section 14(1)(2) of the Act, 1976. A perusal of this provision also indicates that the powers of

the Returning Officer have been controlled for not rejecting the nomination papers on any defect which is not of substantial nature, whereas defect in any submitted nomination papers, duly proposed and seconded by a candidate, is of a substantial nature and provisions of sections 12 and 14 of the Act, 1976 are mandatory in nature as held in Muhammad Abbas v. Returning Officer 1993 MLD 2509, Qaisir Iqbal v. Ch. Asad Raza 2002 YLR 2401, Asif Khan v. Returning Officer 2003 MLD 230 and Mudassar Qayyum Nahra v. Election Tribunal 2003 MLD 1089. Thus on having approved the principle discussed in these judgments, the earlier judgment in the case of Ishaq Dar (ibid) on the point is not approved".

(underlined for emphasis)

18. In "MUDASSAR QAYYUM NAHRA Versus ELECTION TRIBUNAL, PUNJAB, LAHORE and 10 others" (2003 MLD 1089) similar view was expressed in the following manner:-

"---a person not belonging to the concerned constituency cannot be a proposer or a seconder and the nomination papers of a candidate are liable to be rejected if the proposers or the seconder are not qualified to subscribe to the nomination papers. Second proviso to section 14(3)(d) of the Representation of the People Act, 1976, provides that the Returning Officer can allow the removal of only those defects which are not of substantial nature. The unqualified proposer or the seconder leads to the rejection of nomination papers as provided in section 14(3)(b) and, therefore, such a defect cannot be held to be not of substantial nature because such a defect can be removed only by the substitution of a nomination paper and the law does not provide for the substitution of the proposers or the seconders and the safety valve has been provided to the candidates by permitting them by filing up to five nomination papers."

19. In “HAFIZ MUHAMMAD ABBAS Versus RETRUNING OFFICER and 16 others” (1993 MLD 2509) same view was expressed as under:-

“In the case in hand a clear provision of Representation of People Act, 1976 has been violated, in that the seconder with whose signatures the nomination papers were filed was found to be not belonging to the constituency for which the candidate had filed nomination papers. Such a violation could not have been left unnoticed nor could the same, be remedied”

20. In view of the above, by examining the relevant provisions of the Act and the Rules, and the judgments of the Hon’ble Supreme Court of Pakistan and under the jurisprudence of democracy, a voter is the proposer or seconder, of a selected candidate, from the same constituency, from where the candidate is contesting the elections for public confidence, because if the person is elected then he/she is answerable to the voter, proposer or seconder. However, to gain public confidence under a democratic system, proper procedure of the electoral laws and the jurisprudence developed by the Hon’ble Supreme Court of Pakistan shall be followed. In this case, from the judgments referred to above and discussion made, it is clear that the proposer was on the electoral roll of NA-130, as relied by Mr. Mohammad Ahmad Qayyum, ASC during arguments which clearly states that the proposer namely Bilal Hussain was not in the electoral roll of NA-133 rather his name was being reflected in NA-130. This fact has neither been brought on record nor discussed by learned counsel for the Petitioners but the Returning Officer has rightly invoked Section 62 of the Act. We agreed with the findings of the Tribunal which held that *“In captioned appeal, the proposer is undeniably in the Electoral Roll of NA-130 even before the General Elections, 2018 and never applied for correction”*.

21. It is imperative to discuss the purpose and object of the Act which provides for the conduct of elections and matters connected therewith or ancillary thereto. The Preamble of the Act deals with the laws relating to the conduct of elections under specific chapter, conduct of elections of the Assembly under Chapter-5. In this case, few provisions were mentioned. The preamble to a statute is though not an operational part of the enactment but it is a gateway, which opens before us the purpose and intent of the legislature, which necessitated the legislation on the subject and also sheds clear light on the goals which the legislator aimed to secure through the introduction of such law. The preamble of a statute, therefore holds a pivotal role for the purposes of interpretation in order to dissect the true purpose and intent of the law. The August Supreme Court of Pakistan in “DIRECTOR GENERAL, FIA AND OTHERS Versus KAMRAN IQBAL and others” (2016 SCMR 447) laid down the similar principle by holding that :—*“indeed, preamble to a Statute is not an operative part thereof, however, as is now well laid down that the same provides a useful guide for discovering the purpose and intention of the legislature. Reliance in this regard may be placed on, the case of Murree Brewery Company Limited v. Pakistan through the Secretary of Government of Pakistan and others (PLD 1972 SC 279). It is equally well-established principle that while interpreting a, Statute a purposive approach should be adopted in accord with the objective of the Statute and not in derogation to the same.”*.

22. As a general rule, a proviso is added to an enactment to qualify or create an exception to what is in the enactment and ordinarily a proviso is not interpreted as stating a general rule. A proviso which is inserted to remedy unintended consequences and to make the provision workable, a proviso which supplies an obvious omission in the Section and is required to be read into the Section to give the Section a reasonable interpretation, requires to

be treated as retrospective in operation, so that a reasonable interpretation can be given to the Section as a whole. The Hon'ble Supreme Court of Pakistan in "PAKISTAN MATCH INDUSTRIES (PVT.) LTD. and others Versus ASSISTANT COLLECTOR, SALES TAX AND CENTRAL EXCISE MARDAN and others"(**2019 SCMR 906**) has explained the meaning and scope of a proviso by holding that *"provisos were intended to qualify the main part of the provision and carve out an exception from the same, taking out (as it were) something that but for the proviso would be included therein. Such provisos were generally referred to as "true" provisos. Sometimes a proviso was construed to be a substantive clause that operated in its own right, however, such instances were rare, and for a proviso to be so construed the language of the provision must be clear"*. Similarly, in "COLLECTOR OF CUSTOMS APPRAISEMENT, COLLECTORATE, CUSTOMS HOUSE, KARACHI Versus Messrs GUL REHMAN, PROPRIETOR MESSRS G. KIN ENTERPRISES, GHAZALI STREET, NASIR ROAD, SIALKOT"(**2017 SCMR 339**), the scope and purpose of proviso to a provision was elaborated by holding that *"generally a proviso was an exception to or qualified the main provision of law to which it was attached. Proviso was to be strictly construed and it applied only to the particular provision to which it was appended. Proviso was limited to the provision which immediately precedes it. Purpose of a proviso was to qualify or modify the scope or ambit of the matter dealt with in the main provision, and its effect was restricted to the particular situation specified in the proviso itself. Before a proviso could have any application, the section or provision itself must apply"*. It is also settled principle of interpretation that where the intention of the legislature is clear and the object for which law has been enacted Courts are not allowed to interpret such a law in a manner which could impede or defeat the object for which such law has been enacted. The Hon'ble Supreme

Court of Pakistan in “BANK OF PUNJAB and another Versus HARIS STEEL INDUSTRIES (PVT.) LTD. and others”(**PLD 2010 Supreme Court 1109**) observed in para 64 of judgment that “in view of the fact that no interpretation was permissible which could have effect of defeating the clear intention and object of legislature and finally in view of, the, fact that what could not be achieved directly could not be allowed to be accomplished indirectly.”.

23. It is well established principle of law that Statute in general and sub sections of Section are to be read together to understand the true purpose and meaning of particular provision. In “SAUDI PAK INDUSTRIAL AND AGRICULTURAL INVESTMENT COMPANY (PVT.) LTD., ISLAMABAD Versus Messrs ALLIED BANK OF PAKISTAN and another”(**2003 CLD 596**) the Hon’ble Supreme Court of Pakistan held that “it is a fundamental principle of interpretation of documents and statutes that they are to be interpreted in, their entire context following a full consideration of all provisions of the document or statute, as the case may be, that every attempt shall be made to save the document and for this purpose a difference between general statements and particular statements of the document be differentiated properly, to save the document rather to nullify it, that no provision of the document be read in isolation or in bits and pieces, but the entire document is to be read as a whole to gather the intention of the parties, that the Court for this purpose can resort to the correspondence exchanged between the parties, that the Court shall lean to an interpretation, which will effectuate rather than one, which will invalidate an instrument. In the case reported as “R V. Venkataswami Naidu v Narasram”(**AIR 1966 SC 361**) Supreme Court of India observed “A section has only one interpretation and one scope; a process resulting in more than one interpretation and scope is clearly erroneous.” In another case reported as Tehsildar Singh v State of U P. (**AIR 1959 SC 1012, 1022**) Supreme Court of India held

“Every section must be considered as a whole and self-contained.”

Moreover, in case reported as Gurmej Singh v Partab Singh (AIR 1960 SC 122,124) Supreme Court of India explained about the interpretation of subsections of section and observed *“it is an elementary rule that construction of a section is made of all parts together.”* Lastly the case reported as State of Bihar v Hiralal (AIR 1960 SC 47,50) Supreme Court of India explained the principle of interpretation of subsections of section and observed *“it is not permissible to omit any part of it”*.

24. It is to be noted that Chapter-5 deals with the establishment of Returning Officer, duties, elections officials, notifications of election program, polling stations and Section 60 of the Act deals with nomination of elections. Section 60(1) of the Act, itself starts with the wording that any voter of a constituency may propose or second the name of any qualified person to be a candidate for Member for that constituency, the word ‘voter’ has already been discussed above along with term ‘qualified person’. It is to be noted that the process of scrutiny is given in detail under Section 62 of the Act where the law has permitted the voter of a constituency to file objections against the candidate of that constituency. But this section has various sub-sections which are to be read with the main section in totality.

25. The Returning Officer has invoked Section 62(9)(b) of the Act under which he is empowered to reject nomination of a candidate of his own motion or upon an objection raised and found substantiated before him. We have examined the record carefully and noted that the Respondent No.3 had filed the objections which are available at Page 84 (Annex-E/I). The objection raised by aforesaid Respondent reads as *“the proposer of Mr. Jamshed Iqbal Cheema is not qualified to subscribe to the nomination papers given that they are not voters of the constituency of NA-133 moreover, their block falls outside the police scheme of NA-133,*

Lahore". At page 86 (Annex-E/3) of the petition, the application of the objector was that "*the nomination papers of the Petitioners filed by Mr. Jamshed Iqbal Cheema are legally deficient, illegal, a nullity in the eyes of law and are liable to be rejected. Alongwith said objection petition, copy of electoral roll for NA-130 is annexed as Annex-B1 which clearly reflects the Proposer as voter in NA-130. Further copy of vote certificate No.2021 1453 of Mr. Bilal Hussain is annexed as Annex-B2*". From the above, it is quite clear that the proposer name was reflected in NA-130 and not in NA-133.

26. In view of above discussion and following the ratio of judgments of Hon'ble Supreme Court of Pakistan, we are of the considered view that provisions relating to proposer and seconder of a candidate in the Act are mandatory in nature and any defect in respect thereof in nomination, is a defect of substantial nature, which cannot be cured at subsequent stage and nomination papers being invalid on this account, could not be allowed to be validated afterwards in exercise of powers either by the Returning Officer or even by the Appellate Tribunals. We, therefore, agree with the findings of the Respondents No.1 & 2 and do not see any illegality or perversity in the *impugned judgment* and the *impugned order* which have been passed strictly in consonance with the spirit of law, as such do not warrant any interference by us. Consequently, the petitions in hand, being devoid of any merit, are hereby **dismissed**

(MUZAMIL AKHTAR SHABIR)
JUDGE

(JAWAD HASSAN)
JUDGE

Approved for Reporting

JUDGE

JUDGE